

Kaushalya Devi v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 5 April 2023 · Writ-C No. 9841 of 2023 · **Disposed; recovery withdrawn, fresh order under Supply Code after hearing.**

HEADNOTE

Writ against a recovery certificate for electricity dues disposed of after the Electricity Department withdrew the recovery and undertook to pass a fresh order, following opportunity to file objections and a hearing, strictly in accordance with the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Kaushalya Devi filed Writ-C No. 9841 of 2023 in the Allahabad High Court against the State of U.P. and another, challenging a recovery certificate dated 16 January 2023 for electricity dues. On 27 March 2023 the Electricity Department took time to obtain instructions. On 5 April 2023 its counsel stated that the impugned recovery had been withdrawn, and that a fresh order would be passed only after the petitioner filed objections and was heard.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005

fresh recovery order after hearing

HOLDING

The writ challenging a recovery certificate for electricity dues was disposed of once the Electricity Department withdrew the recovery and undertook to pass a fresh order, after opportunity to the consumer to file objections and of hearing, strictly in accordance with the U.P. Electricity Supply Code, 2005. ¶ 2-3

PRINCIPLE TAGS

fresh-order-strictly-under-supply-code The Department having withdrawn the recovery certificate and agreed to decide afresh after objection and hearing, the petition was disposed of leaving that order to be passed strictly under the U.P. Electricity Supply Code, 2005. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY ELECTRICITY DUES REMAINED PAYABLE, AND IN WHAT AMOUNT, AFTER WITHDRAWAL OF THE RECOVERY CERTIFICATE DATED 16 JANUARY 2023.

The Court did not examine the dues. It left a fresh order, after objection and hearing, to the respondents under the Supply Code. ¶ 2-3